

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1478

By: Fugate

AS INTRODUCED

An Act relating to initiative and referendum;
amending 34 O.S. 2021, Section 6.1, which relates to
the physical count of signatures; permitting the
validation of signatures while they are still being
gathered; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 34 O.S. 2021, Section 6.1, is
amended to read as follows:

Section 6.1. A. The Secretary of State shall make or cause to
be made a verification and count of the number of signatures on the
petitions. In making such count, the Secretary of State shall not
include in such total count:

1. All signatures on any sheet of any petition which is not
verified by the person who circulated the sheet of the petition as
provided in Section 6 of this title;

2. All signatures of nonresidents;

3. All signatures on a sheet that is not attached to a copy of
the petition pamphlet;

1 4. All multiple signatures on any printed signature line;

2 5. All signatures not on a printed signature line;

3 6. Those signatures by a person who signs with any name other
4 than his or her own or signs more than once;

5 7. All signatures on any sheet on which a notary has failed to
6 sign, the seal of the notary is absent, the commission of the notary
7 has expired or the expiration date is not on the signature sheet;
8 and

9 8. Any signatures that cannot be verified by the Secretary of
10 State with the Oklahoma State Election Board's public voter
11 registration records.

12 B. The Secretary of State shall notify the Attorney General of
13 any and all violations of this title of which he or she has
14 knowledge.

15 C. The Secretary of State may purchase any tangible or
16 intangible assets, including, but not limited to, software,
17 necessary to carry out his or her duties pursuant to this section.
18 Such purchases shall be exempt from the requirements of the Oklahoma
19 Central Purchasing Act.

20 D. The Secretary of State may begin verification of signatures
21 while signatures are still being gathered.

22 SECTION 2. This act shall become effective November 1, 2025.
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24 60-1-10731 MJ 01/13/25